

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

FAO No. 7458/2024

Habib Metropolitan Bank Pakistan Limited
Versus

Presiding Officer District Consumer Court Sialkot etc.

J U D G M E N T

Date of hearing:	26.05.2025
Appellant by:	Mr. M. Wisal Khan, Advocate.
Respondent No.2 by:	Proceeded against <i>ex parte</i> vide order dated 25.03.2024.

MALIK WAQAR HAIDER AWAN, J:- Through this appeal, appellant has challenged the validity of judgment dated 12.12.2023 passed by the learned Presiding Officer, District Consumer Court, Sialkot (hereinafter called “**Consumer Court**”) whereby the Consumer Court partially accepted the complaint under Section 25 of the Punjab Consumer Protection Act, 2005 (hereinafter referred to as “**Act**”) filed by respondent No.2 and awarded a sum of Rs. 666,500/- to him in the following terms:-

- (a) The price/charges of Rs. 1500/- paid by respondent No.2 with regard to the availing of services from appellant for issuance of new Debit Card.
- (b) A sum of Rs. 50,000/- as compensation on the basis of lack of benefit of non-utilization of the ATM Card.
- (c) A sum of Rs. 15,000/- as litigation charges to be paid by appellant to respondent No. 2.
- (d) An amount of Rs. 100,000/- and Rs. 500,000/- as lawyers’ fee incurred by respondent No.2 for the trial of appeal

before this Court as well as the Supreme Court of Pakistan.

2. Tersely, respondent No.2 filed a complaint for damages before the Consumer Court against appellant/Bank due to sub-standard and defective services of appellant in respect of ATM Machine and Debit Card issued by it. Appellant contested the complaint and took a plea that the Consumer Court lacks jurisdiction. Plea of appellant was accepted and complaint was returned for its presentation before the competent forum vide order dated 02.03.2022. Respondent No.2 challenged the said order before this Court but failed and finally, the Supreme Court of Pakistan declared that the Consumer Court got the jurisdiction to adjudicate upon the matter and directed the Consumer Court to decide the complaint preferably within 03 months. After remand, the Consumer Court partially accepted the complaint in the above-mentioned terms. Hence this appeal.

3. At the very outset of hearing, learned counsel for appellant states that appellant does not press this appeal to the extent of relief granted to respondent No.2 mentioned in the preceding paragraph at Serials No. (a), (b) and (c) and only disputes the lawyers' fee mentioned at Serial No. (d).

4. In view of the above, this appeal is disposed of as not pressed to the extent of claims mentioned at Serials No.(a), (b) and (c) hereinabove.

5. Learned counsel for the appellant contends that fee of the opposite counsel could not be imposed upon the appellant to the extent of this Court as well as the Supreme Court of Pakistan and consequences thereof are to be borne by the parties. Adds that the relief which had not been sought was granted erroneously.

6. Arguments heard. Record perused.

7. The pivotal question involved in this appeal is whether fee of lawyers who pleaded the case of respondent No.2 before this Court as well as the Supreme Court of Pakistan falls in the ambit of Section 31(g) of the Act. The interlinked question of law involved in this appeal is whether the Consumer Court can award the costs/expenses incurred by a litigant to prosecute litigation before other forums, especially when other forums have not granted the same.
8. To delve into the controversy, it is apt to examine Section 31(g) of the Act which is reproduced below for ready reference:-

Order of Consumer Court- *If, after the proceedings conducted under this Act, the Consumer Court is satisfied that the products complained against suffer from any of the defects specified in the claim or that any or all of the allegations contained in the claim about the services provided are true, it shall issue an order to the defendant directing him to take one or more of the following actions, namely:-*

- (a) -----
- (b) -----
- (c) -----
- (d) -----
- (e) -----
- (f) -----
- (g) *To award actual costs including lawyers' fees incurred on the legal proceedings.*
- (h) -----
- (i) -----
- (j) -----
- (k) -----

9. To my mind, awarding lawyers' fee by the Consumer Court to respondent No.2 incurred by him to plead his case before this Court as well as the Supreme Court of Pakistan amounts to exceeding its jurisdiction and stepping into the jurisdiction of Superior Courts as it is an admitted fact that the Supreme Court of Pakistan has not allowed Civil Petition filed by respondent No.2 with costs. Awarding fee of lawyers who pleaded the case of respondent No.2 before this Court as well as the Supreme Court of Pakistan amounts to altering and modifying the judgment of the Supreme Court of Pakistan which is not

covered under Section 31(g) of the Act. The Consumer Court can exercise jurisdiction only to its own extent *qua* complaints filed before it.

10. It would be significant to elaborate the term “actual costs” mentioned in Section 31(g) of the Act. I am of the considered view that the Consumer Court, being a subordinate court, can only determine the actual costs of litigation incurred by a litigant in relation to the proceedings pending before it and not the costs incurred to the proceedings before another court, such as this Court or the Supreme Court of Pakistan.

11. In view of the above, this appeal is **partly allowed** and the impugned judgment is set aside to the extent of grant of lawyers’ fee to respondent No.2 incurred by him before this Court as well as the Supreme Court of Pakistan as mentioned at Sr. No.(d) in paragraph No.1 of this judgment.

(MALIK WAQAR HAIDER AWAN)
JUDGE

Signed
29.05.2025

Abis Ali

APPROVED FOR REPORTING

JUDGE